

the GAL

[2] **Defense opportunity for review and objection:** Prior to submitting a redacted version of any document to the court, Plaintiff must submit the proposed redacted versions to Defense counsel for review. Defense counsel has 45 days from the receipt of any proposed redacted documents to object to the proposed redactions. Any objections must be in writing and sent to Plaintiff's counsel. If Defense counsel does not object in writing within 45 days, Plaintiff may send the redacted documents, along with a cover sheet for each document as described above. If the defense objects in writing the parties must meet and confer to work out an agreement.

[3] **Presentation of redacted documents to court:** if there are no objections, or after objections are worked out by mutual agreement, Plaintiff must efile the documents (in a group, not separately) with the court with a cover sheet on colored paper for each one explaining that the document is a redacted version of a document already filed, and the date the original document was filed.

Plaintiff must attach a statement under oath verifying that the only change from the original document to the corresponding redacted document was the substitution of the initials "K.W." for the minor's name, and the substitution of the initials "I.W." for the name of the GAL, and that Defense counsel has been given 45 days to review the redacted documents, and no objections were received, or that written objections were received and the parties are in agreement that the proposed redacted versions be substituted into the court filed.

[4] **Court entries:** the court will direct the Civil clerk's office to change the name of the minor and the name of the GAL to their initials: "K.W." for the minor and "I.W." for the GAL in the case management system.

The order will become effective on the date that Plaintiff serves of notice of entry of this order on Defendants. Plaintiff shall file proof of service of notice of entry of this order with the Court.

13. 9:00 AM CASE NUMBER: C25-00599

CASE NAME: LYNDEN TRIPP VS. JAMES WINDLEY

***HEARING ON MOTION IN RE: RELIEF FROM MISTAKE, INADVERTENCE, SUPRISE OR EXCUSABLE
NEGLECT**

FILED BY: WINDLEY, JAMES

TENTATIVE RULING:

Before the Court is Defendant's Motion for Relief from Mistake, Inadvertence, Surprise, or Excusable Neglect Under Code of Civil Procedure Section 473(B).

Defendants' Counsel asserts he lost contact with Defendant James Windley, the individual defendant named in the case, and inadvertently failed to serve responses to Plaintiff's Requests for Admissions and Form Interrogatories, Set One, to James Windley.

The motion is **denied**. The court finds Section 473 of the Code of Civil Procedure does not provide for the relief sought here, when the Discovery Act provides analogous, if more limited relief. (*Zellerino v.*

Brown (1991) 235 Cal. App. 3d 1097, 1107.) Here Code of Civil Procedure Sections 2030.290(a) and 2033.280 authorize a court to relieve a party from waiver by failure to timely respond to interrogatories and requests for admissions. Thus relief under Section 473 is unavailable to Defendants.

The motion to compel responses to Plaintiff's Requests for Admissions and Form Interrogatories is set for hearing on September 9, 2026. It is at that time and in that hearing that Defendant may seek relief from his failure to timely respond to Plaintiff's discovery.

Plaintiff's request for sanctions is **denied**.

14. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL SAM FERGUSON
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

15. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL BILL BERLAND
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

16. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL NOAH BERLAND
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

17. 9:00 AM CASE NUMBER: C26-00479
CASE NAME: EVAN OWENS VS. ELIZABETH LAYN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT/CONT'D TO 9/4/26 FROM 8/21/26
FILED BY: LAYN, ELIZABETH G.
TENTATIVE RULING:

Before the Court is a demurrer by defendants to the first amended complaint. For the reasons set forth, the general demurrers to first and second causes of action are **sustained, with leave to amend**,